Out. No. 20260615/1

To the Investigating Judge of Shevchenkivskyi District Court of Kyiv
03680, Kyiv, 31-A Dehtiarivska St.

Defense Counsel: **Attorney Vladyslav Serhiyovych Miftakhutdinov**
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in the interests of: **Oleksandr Vyacheslavovych Boguslayev**

Person whose inactivity is appealed:
Prosecutor of the Prosecutor General's Office
Oleksandr Safaryan

Criminal Proceeding
No. 22017000000000272

COMPLAINT
against inactivity of the prosecutor regarding failure to adopt a decision to change investigative jurisdiction in the manner and within the time limit provided for by paragraph 3 of Part 2 of Article 218 of the CPC of Ukraine

(failure to perform a procedural action required to be performed within the time limit established by the CPC of Ukraine)

I, attorney Vladyslav Miftakhutdinov, provide legal assistance to Oleksandr Vyacheslavovych Boguslayev (hereinafter – the Client; powers – Annexes 1, 2).

In the interests of the Client, I file this Complaint against inactivity of the prosecutor of the Prosecutor General's Office Oleksandr Safaryan, consisting in failure to adopt a decision on determining another investigative jurisdiction of Criminal Proceeding No. 22017000000000272 in the manner and within the time limit provided for by paragraph 3 of Part 2 of Article 218 of the CPC of Ukraine (failure to perform a procedural action required to be performed within the time limit established by the CPC of Ukraine).

1. Regarding factual circumstances of the case.

Investigators of the Main Investigation Directorate of the Security Service of Ukraine (hereinafter – MID SSU) conduct pre-trial investigation of Criminal Proceeding No. 22017000000000272 dated 6 July 2017 (hereinafter – the Criminal Proceeding, Annex 3).

Procedural guidance in the Criminal Proceeding is exercised by prosecutors of the Prosecutor General's Office.

The senior prosecutor of the group of prosecutors is prosecutor Oleksandr Safaryan (Annex 4).

Pre-trial investigation of the Criminal Proceeding is conducted regarding V.O. Boguslayev and O.V. Boguslayev on the grounds of commission of crimes, in particular, provided for by Part 5 of Article 191, Part 3 of Article 209 of the CC.

At the same time, the crimes incriminated by the investigation against V.O. Boguslayev were allegedly committed during the period of his tenure as a People's Deputy of Ukraine – 25 May 2006–29 August 2019.

Thus, according to the investigation's version, misappropriation of property in especially large amounts (Part 5 of Article 191 of the CC) was committed by a person who at that time was a People's Deputy of Ukraine.

In addition, the amount of damage caused as a result of the alleged commission of the criminal offense provided for by Part 5 of Article 191 of the CC significantly exceeds the threshold established by paragraph 2 of Part 5 of Article 216 of the CPC.

Considering that (1) the Criminal Proceeding is conducted on the fact of commission of criminal offenses provided for, in particular, by Part 5 of Article 191 and Part 3 of Article 209 of the CC of Ukraine, (2) the crimes incriminated by the investigation against V.O. Boguslayev were allegedly committed during the period of his tenure as a People's Deputy of Ukraine, and (3) the amount of damage caused by the alleged commission of the act under Part 5 of Article 191 of the CC exceeds the threshold established by paragraph 2 of Part 5 of Article 216 of the CPC of Ukraine, – pre-trial investigation of the criminal proceeding belongs to the **exclusive investigative jurisdiction of NABU**.

Further investigation of Criminal Proceeding No. 22017000000000272 by investigators of the MID SSU is illegal and must be transferred to NABU in view of the following.

2. Regarding the exclusive investigative jurisdiction of the Criminal Proceeding of NABU.

As already noted, the pre-trial investigation of the Criminal Proceeding is conducted by investigators of the MID SSU.

Along with this, conducting the pre-trial investigation of the Criminal Proceeding by investigators of the MID SSU violates the requirements of paragraph 1 of Part 5 of Article 216, Part 1 of Article 218, Part 5 of Article 36 of the CPC of Ukraine in view of the following.

On 28 April 2025, V.O. Boguslayev was notified of suspicion of committing criminal offenses provided for by Part 5 of Article 191, Part 3 of Article 209 of the CC.

On 25 April 2025, in the Criminal Proceeding, a Suspicion was drawn up regarding O.V. Boguslayev concerning the crime provided for by Part 3 of Article 209 of the CC.

According to the investigation's version:

(1) V.O. Boguslayev during 1994–2015, abusing his official position, allegedly illegally misappropriated shares of JSC "Motor Sich" at an undervalued cost as a result of failure to index property value during privatization of SOE "Motor Sich".

(2) Subsequently, V.O. Boguslayev and O.V. Boguslayev, allegedly, legalized proceeds obtained through criminal means, namely sold shares of JSC "Motor Sich" (which were acquired by criminal means) to representatives of the PRC through controlled non-resident companies.

(3) In the future, the funds received were transferred to the personal accounts of O.V. Boguslayev.

At the same time, the crimes incriminated by the investigation against V.O. Boguslayev were allegedly committed during the period of his tenure as a People's Deputy of Ukraine – 25 May 2006–29 August 2019 (Annexes 5–8).

Thus, according to the investigation's version, misappropriation of property in especially large amounts (Part 5 of Article 191 of the CC) was committed by a person who at that time was a People's Deputy of Ukraine.

This, in turn, indicates the exclusive investigative jurisdiction of the Criminal Proceeding of NABU.

Thus, according to paragraph 1 of Part 5 of Article 216 of the CPC of Ukraine, NABU detectives conduct pre-trial investigation of criminal offenses provided for, inter alia, by **Articles 191, 209** (regarding employees of legal entities of public law) of the CC of Ukraine, if the criminal offense was committed, in particular, by a **People's Deputy of Ukraine**.

We note that the CPC of Ukraine **does not establish a requirement** that the special status of the alleged subject of the crime must extend to the entire period of investigation of the proceeding

(in particular, that at the time of notification of suspicion the person must continue to hold such status).

That is, during the investigation period a person may not hold the relevant status. For the investigative jurisdiction of NABU, what is decisive is that the person holds such special status at the time of commission of the alleged criminal offense.

Moreover, the CPC of Ukraine does not establish that the alleged commission of a crime must be connected with the person having such special status (with its use).

In addition, according to paragraph 2 of Part 1 of Article 216 of the CPC, NABU detectives conduct pre-trial investigation of criminal offenses provided for, inter alia, by Articles 191, 209 of the CC of Ukraine, if the amount of damage caused by the offense exceeds 5 thousand times the subsistence minimum (as of today, UAH 16,640,000).

According to the investigation's version, the amount of damage caused by the criminal offense provided for by Part 5 of Article 191 of the CC of Ukraine, as of 17 June 1994, is over UAH 93.5 million, and as of 2021, taking into account consumer price indices (inflation), is UAH 18.05 billion (p. 12 of the Notification of Suspicion, Annex 11).

Therefore, the Criminal Proceeding falls within the investigative jurisdiction of NABU, since the criminal offense incriminated against Boguslayev V.O. – Part 5 of Article 191 of the CC, was allegedly committed by him during the period of his tenure as a People's Deputy of Ukraine, and the amount of damage caused by him exceeds the threshold established by paragraph 2 of Part 5 of Article 216 of the CPC of Ukraine.

In addition, such investigative jurisdiction of NABU in this case is exclusive (i.e. such that precludes the investigation of the Criminal Proceeding by other bodies) in view of the following:

(1) Pursuant to Part 5 of Article 36 of the CPC of Ukraine, it is prohibited to entrust the conduct of pre-trial investigation of a criminal offense assigned to the investigative jurisdiction of NABU to another pre-trial investigation body, except in cases where objective circumstances exist that make the functioning of NABU or its conduct of pre-trial investigation impossible under martial law.

In this Criminal Proceeding, circumstances making the functioning of NABU impossible are absent.

(2) Part 5 of Article 36 of the CPC of Ukraine establishes that it is prohibited for pre-trial investigation bodies other than NABU and the central apparatus of the SBI to conduct pre-trial investigation of a criminal offense committed by a People's Deputy of Ukraine, in accordance with their investigative jurisdiction.

Along with this, it is worth noting that pursuant to paragraph 13 of Part 5 of Article 216 of the CPC of Ukraine, NABU detectives, for the purpose of preventing, detecting, terminating, and uncovering criminal offenses assigned by this Article to its investigative jurisdiction,

upon the decision of the Director of NABU and in agreement with the SAPO prosecutor, may also investigate criminal offenses that are assigned to the investigative jurisdiction of investigators of other bodies.

Thus, the CPC of Ukraine directly provides that the investigation within the criminal proceeding of other criminal offenses that do not belong to the investigative jurisdiction of NABU does not exclude the exclusive investigative jurisdiction of the criminal proceeding of NABU.

Considering the above, the Criminal Proceeding belongs to the exclusive investigative jurisdiction of NABU detectives.

Thus, Part 5 of Article 36, Parts 2, 5 of Article 216 of the CPC of Ukraine establish the lack of authority of the bodies of the Security Service of Ukraine to conduct pre-trial investigation in the Criminal Proceeding.

At the same time, according to Part 2 of Article 19 of the Constitution of Ukraine, state authorities and their officials are obliged to act only on the basis, within the powers, and in the manner provided for by the Constitution and laws of Ukraine.

Thus, NABU is the only body authorized to conduct pre-trial investigation in the Criminal Proceeding.

3. Regarding the duty of the prosecutor to determine another investigative jurisdiction of the criminal proceeding.

Part 2 of Article 218 of the CPC of Ukraine regulates the procedure of actions of an investigator/prosecutor upon discovering that a criminal proceeding is outside the investigative jurisdiction of the investigative body.

In particular, the specified provision establishes the **duty of the prosecution to duly respond** to discovered facts and circumstances indicating a violation of investigative jurisdiction within a criminal proceeding.

Thus, according to paragraph 3 of Part 2 of Article 218 of the CPC of Ukraine, the prosecutor, in case of independent determination of circumstances indicating the necessity to determine another investigative jurisdiction, within ten days from the date of establishing such circumstances, is obliged to adopt a ruling on determining investigative jurisdiction.

Therefore, the specified provision establishes:

(1) the duty of the prosecutor to determine another investigative jurisdiction;

(2) the ground for determining another investigative jurisdiction;

(3) the time limit within which the prosecutor must adopt a decision on changing the investigative jurisdiction of the proceeding.

We emphasize that the specified provision establishes precisely the duty of the prosecutor, in case of violation of investigative jurisdiction, to perform actions aimed at determining the proper investigative jurisdiction.

Within the Criminal Proceeding, the prosecutor is obliged to comply with the requirements of paragraph 3 of Part 2 of Article 218 of the CPC of Ukraine and determine another investigative jurisdiction of the Criminal Proceeding within 10 days, since:

(1) the Criminal Proceeding constitutes the exclusive investigative jurisdiction of NABU;

(2) the Criminal Proceeding cannot fall within the investigative jurisdiction of MID SSU.

On 7 February 2025, prosecutor Oleksandr Safaryan was included in the group of prosecutors and appointed as the senior prosecutor of the group.

The circumstances necessitating a change of investigative jurisdiction of the Proceeding arose on 25 April 2025 – at the time of notifying a special subject – Boguslayev V.O. of suspicion under Part 5 of Article 191 of the CC.

Consequently, it was from that date that such 10-day period for determining the investigative jurisdiction of the Criminal Proceeding of NABU commenced.

Moreover, on 29 May 2026, the defense filed with Oleksandr Safaryan a Motion on determination of investigative jurisdiction of the criminal proceeding under another pre-trial investigation body (Annex 9).

On 3 June 2026, I received the Prosecutor's Ruling dated 3 June 2026, by which the prosecutor refused to grant the said Motion. Along with this, the prosecutor failed to duly take into account the exclusive grounds clearly and plainly demonstrating that the Criminal Proceeding is outside the investigative jurisdiction of the MID SSU (Annex 10).

That is, the prosecutor failed to fulfill his duty, took no action to remedy the illegality of the investigative jurisdiction of the Criminal Proceeding, and did not transfer the conduct of its...

pre-trial investigation to NABU. By doing so, he engaged in inactivity and continues to engage in it.

Thus, prosecutor Oleksandr Safaryan was obliged to determine the investigative jurisdiction of the Criminal Proceeding of NABU and issue a corresponding ruling.

4. Regarding the right to appeal.

According to paragraph 1 of Part 1 of Article 303 of the CPC of Ukraine, during pre-trial proceedings, inactivity of the prosecutor consisting in failure to perform procedural actions that he is obliged to perform within the time limit established by the CPC of Ukraine may be appealed.

Pursuant to paragraph 3 of Part 2 of Article 218 of the CPC of Ukraine, the prosecutor has:

(1) The duty and authority to determine another investigative jurisdiction.

(2) The duty to adopt a ruling on determining another investigative jurisdiction within 10 days from the date of establishing that the criminal proceeding falls under the investigative jurisdiction of another pre-trial investigation body.

According to Part 1 of Article 304 of the CPC of Ukraine, complaints against inactivity of the prosecutor may be filed by a person within ten days from the moment of commission of the inactivity.

On 7 February 2025, prosecutor Oleksandr Safaryan was appointed as the senior prosecutor of the group of prosecutors in the Criminal Proceeding.

On 25 April 2025, a notification of suspicion under Part 5 of Article 191 of the CC was served on the special subject – Boguslayev V.O.

That is, starting from 25 April 2025, prosecutor Oleksandr Safaryan was obliged as the procedural supervisor to change the investigative jurisdiction of the Criminal Proceeding.

Along with this, he did not perform the specified actions and continues not to fulfill the duty imposed on him by the CPC of Ukraine. By doing so, he engages in continuing inactivity, which commenced on (25 April 2025) and continues until the prosecutor takes action to change the pre-trial investigation body of the Criminal Proceeding to NABU.

Therefore, this complaint has been filed within the statutory time limit.

Taking into account the above and guided by Articles 9, 42, 216, 218, 36, 303–305 of the CPC of Ukraine, –

I REQUEST:

1. To grant the complaint of the defense counsel of Boguslayev O.V. – attorney Miftakhutdinov V.S., against inactivity of the prosecutor of the Prosecutor General's Office Oleksandr Safaryan, consisting in failure to adopt a decision to determine another investigative jurisdiction of Criminal Proceeding No. 22017000000000272 dated 6 July 2017.
2. To obligate the prosecutor of the Prosecutor General's Office Oleksandr Safaryan to fulfill the requirements of paragraph 3 of Part 2 of Article 218 of the CPC of Ukraine and determine the investigative jurisdiction of Criminal Proceeding No. 22017000000000272 dated 6 July 2017 under the National Anti-Corruption Bureau of Ukraine.
3. To notify of the date, time, and place of consideration of this complaint at the address: Entrance 13, BC "Bashta 5", 22 Rybalska St., Kyiv, 01011, and by telephone number: +38097 327 02 69.

Annexes:

1. Certified copy of the Certificate of the Right to Practice Law.
2. Certified copy of the Order on provision of legal assistance.
3. Certified copy of the Extract from the URPI regarding Criminal Proceeding No. 22017000000000272.
4. Certified copy of the Ruling of the First Deputy Prosecutor General on determining the group of prosecutors dated 7 February 2025.
5. Printout from the official website of the Verkhovna Rada of Ukraine regarding Boguslayev V.O.'s status as a People's Deputy of Ukraine from 25 May 2006 to 23 November 2007 (V convocation).
6. Printout from the official website of the Verkhovna Rada of Ukraine regarding Boguslayev V.O.'s status as a People's Deputy of Ukraine from 23 November 2007 to 12 December 2012 (VI convocation).
7. Printout from the official website of the Verkhovna Rada of Ukraine regarding Boguslayev V.O.'s status as a People's Deputy of Ukraine from 12 December 2012 to 27 November 2014 (VII convocation).
8. Printout from the official website of the Verkhovna Rada of Ukraine regarding Boguslayev V.O.'s status as a People's Deputy of Ukraine from 27 November 2014 to 29 August 2019 (VIII convocation).
9. Certified copy of the Motion on determination of investigative jurisdiction dated 29 May 2026.
10. Certified copy of the Ruling on refusal to grant the Motion on determination of investigative jurisdiction dated 3 June 2026.
11. Certified copy of the Notification of Suspicion to Boguslayev V.O.

15 June 2026

Defense Counsel **V.S. Miftakhutdinov**